

U.S. CITIZENSHIP AND IMMIGRATION SERVICES — NOTICE OF ACTION (FORM I-797E)

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DEPARTMENT OF HOMELAND SECURITY
U.S. Citizenship and Immigration Services
Western Adjudications Center
P.O. Box 74119
Laguna Verde, CA 92612-0119

RECEIPT NUMBER	WAC-26-118-50432
NOTICE DATE	July 28, 2026
CASE TYPE	I-129, Petition for a Nonimmigrant Worker
CLASSIFICATION REQUESTED	H-1B, Specialty Occupation
RECEIVED DATE	April 6, 2026
PRIORITY DATE	None
PETITIONER	CALDERON RIDGE ROBOTICS, INC.
BENEFICIARY	BARANWAL, NIKHIL ARJUN
REQUESTED VALIDITY	October 1, 2026 to September 30, 2029
NOTICE TYPE	REQUEST FOR EVIDENCE
RESPONSE DUE BY	October 20, 2026

NOTICE TO:
MARISOL TRENT-OKAFOR, ESQ.
HALVERN & BOAZ LLP
411 WEXLER STREET, SUITE 1200
COLUMBUS, OH 43215

SUMMARY OF THE REQUEST

The Service has reviewed the Form I-129 petition and the supporting documentation submitted on behalf of the above-named beneficiary. The record as presently constituted does not establish eligibility for the classification sought. In order to continue processing this petition, you must submit the additional evidence described below.

Each numbered item below is a separate request. Respond to every item. If an item is not applicable to your petition, state so in writing and explain why.

ITEM 1 — THE PROFFERED POSITION AS A SPECIALTY OCCUPATION

What the record shows. The petitioner seeks to employ the beneficiary as a "Controls Systems

Engineer II." The record contains a description of the offered position and a letter of support from the petitioner. However, the record does not clearly demonstrate that the duties of the position are so specialized and complex that they require the theoretical and practical application of a body of highly specialized knowledge, or that a bachelor's degree or higher in a specific specialty, or its equivalent, is normally the minimum requirement for entry into the particular position.

Governing standard. Section 214(i)(1) of the Immigration and Nationality Act; 8 CFR 214.2(h)(4)(ii); 8 CFR 214.2(h)(4)(iii)(A). A general degree requirement, without further specification, is not sufficient to establish a specialty occupation.

Evidence you may submit. Submit one or more of the following:

- a. A detailed written description of the day-to-day duties of the proffered position, including the percentage of time the beneficiary will devote to each duty, the tools, systems, and methods used, and the specific body of specialized knowledge each duty requires.
- b. Evidence that the degree requirement is common to the petitioner's industry in parallel positions among similar organizations, such as job announcements from similar employers, industry publications, or letters from recognized industry associations.
- c. Evidence that the petitioner normally requires a degree or its equivalent in a specific specialty for the position, such as the petitioner's written hiring standards, and the educational credentials of persons who previously held or currently hold the same position.
- d. An explanation of how the offered position differs in complexity from lower-level positions in the same occupational category within the petitioner's organization, supported by an organizational chart.

ITEM 2 — THE BENEFICIARY'S QUALIFICATIONS FOR THE PROFFERED POSITION

What the record shows. The record indicates that the beneficiary holds academic credentials, but it does not establish to the Service's satisfaction that the beneficiary holds a United States bachelor's degree or higher in the specific specialty required for the position, or a foreign degree determined to be equivalent to such a degree.

Governing standard. 8 CFR 214.2(h)(4)(iii)(C).

Evidence you may submit. Submit one or more of the following:

- a. Copies of all diplomas and certificates of award awarded to the beneficiary, together with certified English translations where the original is not in English.
- b. Complete academic transcripts for each program of study, showing the courses completed, the grades received, and the date the credential was conferred.
- c. Where a foreign credential is relied upon, an evaluation of that credential prepared by a person or organization competent to evaluate foreign educational credentials, stating the United States equivalency and the basis for that conclusion.
- d. Evidence that the awarding institution is accredited or is officially recognized in the country in which it operates.

ITEM 3 — THE EMPLOYER-EMPLOYEE RELATIONSHIP AND THE PETITIONER'S RIGHT TO CONTROL THE

BENEFICIARY'S WORK

What the record shows. The record indicates that the beneficiary will perform services at a worksite that is not owned or operated by the petitioner. The record contains a services agreement between the petitioner and a third party, but that agreement does not, by itself, establish that the petitioner will have and maintain the right to control the beneficiary's work throughout the entire period of requested employment. The requested validity period extends to September 30, 2029, and the record does not document the placement, the supervising authority, or the availability of work for the full period requested.

Governing standard. 8 CFR 214.2(h)(4)(ii) (definition of "United States employer"); 8 CFR 214.2(h)(2)(i)(B) (itinerary requirement for services in more than one location).

Evidence you may submit. Submit one or more of the following:

- a. A signed letter from the end client, on the end client's letterhead, describing the project on which the beneficiary will work, the duration of the assignment, the beneficiary's duties on that project, and who will supervise and evaluate the beneficiary's work.
- b. Signed contracts, statements of work, work orders, or purchase orders covering the entire requested validity period, and not merely its initial portion.
- c. An itinerary of definite employment showing the dates and locations of each placement during the requested period.
- d. Evidence of the petitioner's supervisory practices, such as the petitioner's written performance-review policy for placed employees, reporting structures, and the name and title of the petitioner's supervising employee.

ITEM 4 — CORRESPONDENCE BETWEEN THE CERTIFIED LABOR CONDITION APPLICATION AND THE PETITION

What the record shows. The record includes reference to a certified Labor Condition Application (LCA). The occupational classification and wage level identified on the LCA appear consistent with the petition. However, the LCA of record identifies only one place of employment, while other documents in the record indicate that the beneficiary will perform services at an additional location in a different area of intended employment. A petition must be supported by an LCA that was certified for the correct occupational classification, the correct wage level, and each place of employment at which the beneficiary will work.

Governing standard. 8 CFR 214.2(h)(4)(i)(B)(1); 20 CFR 655.730-655.734.

Evidence you may submit. Submit one or more of the following:

- a. A copy of the certified LCA, signed by the petitioner, covering every place of employment where the beneficiary will perform services during the requested validity period.
- b. If more than one area of intended employment is involved, a copy of each additional certified LCA, or a written explanation of why an additional LCA is not required, with reference to the applicable short-term placement or non-worksite provisions.
- c. A statement identifying the prevailing wage source, the wage level assigned, and the actual wage the petitioner will pay, and explaining how the offered wage meets or exceeds the required wage at each location.

ITEM 5 — THE BENEFICIARY'S MAINTENANCE OF STATUS AND ELIGIBILITY FOR THE REQUESTED CHANGE OF STATUS

What the record shows. The petition requests a change of nonimmigrant status on behalf of the beneficiary. The record contains no evidence of the beneficiary's current or prior nonimmigrant status, no evidence of lawful admission, and no evidence that the beneficiary has maintained that status through the date of filing. Without this evidence, the Service cannot approve the requested change of status even if the petition is otherwise approvable.

Governing standard. Section 248(a) of the Immigration and Nationality Act; 8 CFR 248.1; 8 CFR 214.1(c)(4).

Evidence you may submit. Submit all of the following that apply to the beneficiary:

- a. A copy of the beneficiary's Form I-94, Arrival/Departure Record, for the current period of admission, and for each prior admission in the last five years.
- b. Copies of all Forms I-20, Certificate of Eligibility for Nonimmigrant Student Status, issued to the beneficiary, including any Form I-20 endorsed for practical training.
- c. A copy of the front and back of any Employment Authorization Document issued to the beneficiary, and evidence of employment undertaken pursuant to that document.
- d. Copies of the biographic page of the beneficiary's passport and of all nonimmigrant visas issued to the beneficiary.
- e. A written statement accounting for every period since the beneficiary's most recent admission during which the beneficiary was not employed or enrolled, if any.

ITEM 6 — THE PETITIONER AS A UNITED STATES EMPLOYER ENGAGED IN BUSINESS

What the record shows. The Service requires evidence that the petitioner is a United States employer that has a Federal Employer Identification Number, that engages persons to work within the United States, and that is doing business as defined in the regulations. The record contains some corporate documentation; you may supplement it as described below.

Governing standard. 8 CFR 214.2(h)(4)(ii).

Evidence you may submit. Submit one or more of the following:

- a. Evidence of the petitioner's legal formation and good standing, such as articles or a certificate of incorporation and a current certificate of good standing.
- b. Evidence of the petitioner's Federal Employer Identification Number.
- c. Evidence that the petitioner is currently doing business, such as recent financial statements, tax filings, quarterly wage reports, invoices to customers, or a current lease for the petitioner's premises.
- d. An organizational chart identifying the petitioner's staff, showing where the proffered position sits within the organization.

HOW TO RESPOND

1. Return this notice. Place this entire Request for Evidence on top of your response. A response submitted without this notice may be delayed or rejected.
2. Respond in one submission. Send all requested evidence together in a single package. The Service will make a decision on the record as it exists at the end of the response period; piecemeal submissions may not be considered.
3. Deadline. Your response must be received on or before October 20, 2026. Extensions of this deadline are not available.
4. Do not submit original documents unless specifically requested. Submit legible photocopies. Any document in a language other than English must be accompanied by a full English translation that the translator has certified as complete and accurate, together with the translator's certification of competence to translate.
5. Consequences of no response or an incomplete response. If you do not respond by the date above, the petition may be denied as abandoned. If you respond but the evidence does not establish eligibility, the petition may be denied. If the petition is denied, any filing fees paid will not be refunded.

Send your response to the address at the top of this notice.

Officer ID: WAC-4471

This notice does not grant any immigration status or benefit.